

Court No. - 36

Case :- WRIT - C No. - 40122 of 2013

Petitioner :- Prakash Chandra

Respondent :- State Of U.P. Thru Secy. And Another

Counsel for Petitioner :- Rajesh

Counsel for Respondent :- C.S.C.,Amrit Lal Yadav

Hon'ble Vineet Saran,J.

Hon'ble B. Amit Sthalekar,J.

Heard learned counsel for the petitioner as well as learned Standing Counsel for the respondent no. 1 and Sri Amrit Lal Yadav for the respondent no. 2 and have perused the record.

The petitioner is aggrieved by the assessment bill dated 3.5.2013 issued by the respondent no. 2. The charge against the petitioner is that from his electricity connection for use of agricultural purpose, the electricity was being supplied for commercial purpose and hence the assessment notice has been issued.

Learned counsel for the parties do not dispute that the petitioner has a remedy available under the U.P. Electricity Supply Code, 2005 and the petitioner has already filed an objection before the respondent no. 2.

In such view of the matter, since the petitioner has an alternative remedy, we would not be inclined to entertain this petition on merits.

This writ petition is accordingly dismissed. No order as to costs.

Order Date :- 25.7.2013

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(B. Amit Sthalekar, J.)

(Vineet Saran, J.)